

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/9/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL 1502263

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: MAHMOUD SHIRAZI

and

RESPONDENT: FARANAK HAGHIGHI

NATURE OF PROCEEDINGS: REQUEST FOR ORDER - SPOUSAL SUPPORT

RULING

This matter is before the Court on Petitioner/Husband's May 20, 2026, Request for Order (RFO) to modify the Spousal Support as ordered in the April 14, 2023, Findings and Order After Hearing (FOAH). The FOAH modified post-Judgment spousal support, after consideration of the Family Code §4320 factors, to \$600 per month, payable to Husband by Respondent/Wife through December of 2024. After December 2024, spousal support would terminate unless Husband failed to qualify for Wife's social security derivative benefit.

Husband requests \$8,000 a month in spousal support. Husband asserts that he is unable to maintain the marital standard of living despite his efforts, and he now requires support in order to be able to retire due to his medical condition.

Wife's June 23, 2026, response urges the Court to deny Husband's request because it is not based on a material change of circumstances.

A request to modify spousal support may be granted only if the party seeking the modification shows a material change of circumstance since the most recent order. *Marriage of West*, (2007) 152 Cal.App.4th 240, 260.

Family Code §4320

In addressing post-judgment requests for spousal support, the Court must consider factors outlined in Family Code §4320.

1. *The extent of earning capacity to maintain the standard of living established during the marriage.*

Husband reports that Wife's earnings supported the parties throughout the marriage in what he states was a middle-class lifestyle.

2. *The extent to which the supported party contributed to the supporting party's education, training, and career path.*

Husband states that he played a pivotal role in Wife obtaining her Nursing license but does not provide evidence of how.

3. *Supporting party's ability to pay.*

Wife does have the ability to pay support if ordered by the court.

4. *Each party's needs based on the standard of living.*

Husband currently receives Social Security retirement income. He continues to live on a boat in San Rafael. He still reports having the mini mart and is driving for Lyft. Husband states that he has never been able to establish the standard of living that he grew accustomed to. Husband reports having \$5,490 in monthly expenses while having \$6,222 in total income.

Wife is employed and continues to be able to maintain her standard of living on her own.

5. *Obligations and Assets.*

At the April 13, 2023, hearing, Husband reported having property in another country. On his May 20, 2026, Income and Expense Declaration, Husband indicated that he has "lots of land \$15,000" valued at \$14,510. Husband does not specify its location or whether it is income-producing. He reports having \$67,360 in outstanding debt that he pays \$1,021 a month for.

Wife reports monthly income as a nurse at MarinHealth of \$14,980 (base salary) plus \$6,111 (last months' overtime), \$2,696 in social security retirement, \$2,017 as adjunct faculty at Dominican, \$2,275 as a staff nurse at Kaiser, for a total of \$28,069 in her nurse's salary, and \$12,275 in monthly expenses. She reports owning \$743,000 in assets.

6. *Duration of the marriage.*

This was a long-term, 18-year marriage.

7. *The supporting party's ability to be gainfully employed without interfering with the interests of the dependent children.*

There are no children from this relationship.

8. *Each party's age and health.*

Husband is now 75 ½ and in relatively good health. However, he reports he has lower back and sciatica issues because of his time driving for Uber. In the past, he reported his work at the mini-mart negatively affected his back, however, he does not report how running the mini-mart is affecting him. He reports that he is now in need of retiring to live a "good, relax life".

Wife is 64 and in good health.

9. *History of domestic violence.*

Husband does not make indication of there being a history of domestic violence. However, at the last hearing, the Court reported that there is a history of domestic violence, with a history of violence and verbal abuse by the Husband upon Wife. Hon. Beverly Wood included a finding in

the Judgment entered on July 16, 2016, that Wife was a victim of sustained mental and physical abuse. Wife has undergone treatment for post-traumatic stress.

10. *Immediate and specific tax consequences to each party.*

Spousal support is no longer tax deductible for Wife.

11. *Balance of hardships.*

Wife reports that for many years, she worked multiple jobs and long hours to support their family and subsidize Husband's business losses. Wife states that she continues to work to support herself and prepare for her own retirement. Wife's monthly income was reported at \$13,035 at the April 2023 hearing. Her current monthly income has approximately doubled in the last 3 years.

Husband states that he is 75 ½ years old and that he is living in "extreme hardship" living at a shipyard with chemical dust and noise and his weak back and side make it difficult to go up and down the ladder to get into the boat. He also states he is "not happy" about all the debt he must carry. At the April 2023 hearing, Father reported making \$323 in Social Security retirement. His Social Security retirement income has gone up to \$1,372.

Both parties report an increase in their income and this not a hardship.

12. *Criminal convictions.*

None reported.

13. *Any other relevant factors.*

Husband states that this was a long marriage and that the Court should "issue a very good amount of spousal support that [he] is due for."

At the April 13, 2023, hearing, the Court stated that spousal support duration may be indefinite "in the event that the Husband cannot qualify for Wife's social security derivate payment" which would go into effect once Wife turned 62. According to Wife, that event has now happened and therefore Spousal support should remain as issued on June 13, 2026.

As a threshold matter, "[c]ircumstances accounted for in the previous order cannot constitute a change of circumstances." *Marriage of Khera & Sameer* (2012) 206 Cal.App.4th 1467. Based on the information provided to the Court, Husband does not demonstrate a change of circumstances. Accordingly, Husband's request for a modification of spousal support is DENIED.

Counsel for Wife is ordered to prepare the formal Findings and Order After Hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be

permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 7/9/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL 1804292

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: CHRISTINA YSABELLA MURILLO MORENO	
and	
RESPONDENT: JUAN JOSE MORENO, JR.	

NATURE OF PROCEEDINGS: REVIEW HEARING – CHILD CUSTODY/VISITATION

RULING

This Court entered a Findings and Order after Hearing (FOAH) on July 28, 2025. Under the terms of FOAH, the parents—Juan Moreno (Father) and Christina Murillo (Mother)—agreed to a framework relating to visitation and school selection for their shared son Juan (DOB 11/07/2017). The FOAH further provided that the parents were to contact Marin Family Court Services (FCS) in May 2026, to review school preferences and evaluate the visitation conditions and terms agreed to by the parties and ordered by this Court.

The parents complied with this direction in the FOAH and FCS has conducted further mediation with the parties, as reflected in FCS’s report of June 11, 2026. In addition, FCS interviewed the parties’ son, Juan.

Under the terms of this Court’s previous FOAH, during the school year Juan is in Mother’s custody on the first, third, and fifth weekends of the month from Friday after school through Sunday evening. Commencing Summer 2026, Juan shall be in the custody of Mother for the summer, returning one week before school starts. During the summer, Father has custody on alternate weekends and for one two-week vacation.

As to the question of school choice, both parents now live in Sonoma County. The school choice issue, however, remains in dispute as Father would like Juan to continue attending Hamilton Elementary in Novato while Mother would like Juan to attend her neighborhood school in the Santa Rosa school district (Luther Burbank).

As a threshold matter, as neither parent resides in Marin County, venue for this matter needs to be transferred to Sonoma County where both parents reside following the 6/25/26 hearing in Marin. Mother reports that she has filed in Sonoma County to transfer their case, and a hearing has been scheduled for 8/27/26 in Sonoma Family Court.